

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 08, 2026
8:30 a.m.

1. JEFFREY STEVEN VANHEE V. ASHLEY NICHOLE VANHEE

25FL0526

This matter is before the court for two purposes: Hearing of the Respondent's Request for Orders (RFO) filed June 05, 2026 (which was accompanied by a request for emergency orders) requesting sale of various vehicles to satisfy support arrears allegedly owed by the Petitioner and for hearing on return from a CCRC session prompted by the Respondent's RFO filed April 23, 2026.

The June 05, 2026, RFO was continued by order of the court to coincide with the return of the parties from the CCRC session to promote judicial economy.

Respondent filed opposition to the June 05, 2026, RFO on Jun 15, 2026 (Memo of Points and Authorities) and on June 16, 2026: Responsive Declaration, and Income and Expense Declaration. The Respondent filed a Reply Declaration on June 30, 2026. These documents have been read and considered by the court.

The CCRC report was submitted to the court on June 22, 2026. Copies were sent to the parties and their attorneys on June 23, 2026, according to the Clerk's Certificate of Mailing. No supplemental declarations have been filed in response to the CCRC report.

June 05, 2026, RFO: The evidence is clear that the Petitioner has not been fully paying his child or spousal support obligation. Petitioner asserts that he is not as far in arrears as is claimed by the Respondent. Petitioner further asserts that he is no longer making the amount of income which was the basis for both support orders. However, he has not sought to have the orders modified. He also alleges that the assets that the Petitioner wants to have turned over to her so that they may be sold are not his to turn over.

The court notes that the relief requested by the Respondent would typically be deferred to time of trial of the underlying dissolution action begun by the Petitioner with his Petition filed on June 09, 2025, over a year ago. The court notes that the Respondent filed her Preliminary Declaration of Disclosure (PDD) on April 13, 2026. There is no PDD filed by the Petitioner but there is also no motion by the Respondent to compel Petitioner to comply with Disclosure which would otherwise be well past due.

Because there is dispute as to the ownership of the assets sought to be seized, the court will set an evidentiary hearing.

April 23, 2026, RFO: The court continues to be troubled by the Petitioner's disregard for the negative consequence his consumption of alcohol has on his ability to parent. The court finds, also, that the Respondent is not so far along in her efforts to free herself of alcohol as she has previously represented to the court.

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The court finds that the agreements reached by the parties and the recommendations of the CCRC counsellor found in the June 22, 2026, CCRC report are in the best interests of the children and so adopts them as the orders of the court.

TENTATIVE RULING #1: THE PARTIES ARE ORDERED TO APPEAR TO SELECT A HEARING DATE FOR THE RESPONDENT'S RFO FILED JUNE 05, 2026. THE AGREEMENTS AND RECOMMENDATIONS OF THE JUNE 22, 2026, CCRC REPORT ARE ADOPTED AS THE ORDERS OF THE COURT.

NO HEARING ON THE CUSOTDY/VISITATION ORDERS WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.